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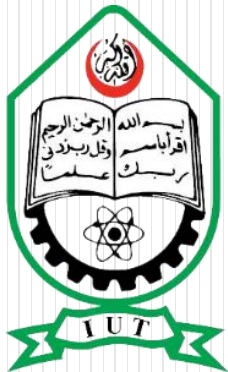
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ISLAMIAAT

Hum 4145/4137

Fasting in Islam

فقه الصيام - fiqhus Siyam



What do you know about Fasting???

- Ibadaats
 - Purification
 - Prayer / Salah
 - Zakah
 - - Islamic Economics / Economic System in Islam
 - Fasting / Sawm
 - Hajj

Outline : Fasting in Islam

fiqhus Siyam- فقه الصيام

- A general overview of Fasting
- Benefits of fasting
- Rules regarding fasting
- Utilizing this special blessings

A general overview of Fasting

- self-control is indispensable for all human beings regardless of religion, creed and color. Any sane person can realize that if everyone lives whimsically according to their desire, the whole mankind will vanish in a short period of time or there will be chaos everywhere. Therefore Islam puts utmost emphasis on self control and provided for that a number of mechanisms and methods. Allah says:

“Is one who was dead and we granted him life, and provided him with light that enables him to move among the people, equal to one in total darkness from which he can never exit?” (6:122)

- Fasting is a practical exercise of **self control**. Due to its practical implication it is one of the pillar of Islam. Quensequetly it helps Muslims acquire **Taqwa (awareness of Allah)**. Allah says:

يَا أَيُّهَا الَّذِينَ آمَنُوا كُتِبَ عَلَيْكُمُ الصِّيَامُ كَمَا كُتِبَ عَلَى الَّذِينَ مِن قَبْلِكُمْ لَعَلَّكُمْ تَتَّقُونَ ﴿١٨٣﴾

“O you who believe, fasting is decreed for you, as it was decreed for those before you, that ye may (learn) self-restraint”.

2:183

Reflection of the verse:

- Fasting is not only prescribed for the Ummah of Prophet Muhammad (PBUH), but it was, with little variations in types, for previous prophets too. So it remained among the key worships of Islam in its final form, abrogating all the previous forms.
- The positive impacts of the fasting in its last form for the Ummah of Prophet Muhammad sm is manifested on Muslims life personally, psychologically, behaviorally and socially.

Fasting and the month of Ramadan.....

- In this month the Quran was revealed.
- In this month the Prophet Muhammad (PBUH) started inviting people to Islam.
- furthermore, counting the month by moon sighting also alludes to the scientific aspect of Allah's power and no one has any interference in it.
- Fasting in Ramadan also boosts the Muslims brotherhood and sense of unity rather than fasting in different months or leaving it to Muslims to chose by themselves.

Definition of Fasting and its philosophical basis:

To abstain from all that nullify fasting from dawn to dusk for the sake of Allah with proper intention.

- The Nullifiers include any kind of eating and drinking, intercourse, ejaculation etc..... (كلوا واشربوا)
- The **bottom-line** here is to abstain from the tow desires which are the most influential desires in human beings. Therefore, whoever manage to control these two desires in the course of Ramadan, will be able to control other desires and lusts quite easily. **Moreover**, they will be able to fulfill their these two desires more wisely after Ramadan i.e. avoiding gluttony and any other malpractices in intercourse.

(Fasting= a Month Long Training Period)

- Prophet Muhammad (PBUH) said in this regard:

عَنْ سَهْلِ بْنِ سَعْدٍ، عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ قَالَ " مَنْ يَضْمَنْ لِي مَا بَيْنَ لَحْيَيْهِ وَمَا بَيْنَ رِجْلَيْهِ أَضْمَنْ لَهُ الْجَنَّةَ ."

“Whoever can guarantee (the chastity of) what is between his two jaw-bones and what is between his two legs, I guarantee Paradise for him.” (Bukhari- 6474)

- No means can help Muslims to control his tongue as it can in Ramadan. Because, when someone is always well-fed and not hungry makes the body and mind so strong. Consequently it becomes difficult for him to control his tongue and tongue is the tool for expressing whatever men have in mind. Therefore if the mind is not imbued with Islamic ethos, it will manifest in their tongue, hands, legs and in behavior and deeds. So controlling the mind by abstaining from desire of eating and drinking makes men avoid the wrong path and follow the right one.

من حسن إسلام المرأ تركه ما لا يعنيه

- Prophet Muhammad sm said in this regard:

عَنْ أَبِي هُرَيْرَةَ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَنْ لَمْ يَدَعْ قَوْلَ الزُّورِ وَالْعَمَلَ بِهِ فَلَيْسَ لِلَّهِ حَاجَةٌ فِي أَنْ يَدَعَ طَعَامَهُ وَشَرَابَهُ

“if one does not abandon from falsehood and other actions like it, God has no need that one should abandon one's food and drink”.

(Bukhari- 1903).

If any one fails to elevate to that status of faith, then his fasting is simply futile. As the Prophet said:

"There are people who fast and get nothing from their fast **except hunger**, and there are those who pray and get nothing from their prayer but a **sleepless night**". (A sound Hadith according to Targhib)

- **Physical benefits of fasting:**

A number of studies suggest that fasting has many positive impacts on human body including digestion process, rapid consumption of sugar in blood, maintaining a healthy balance of weight.

(Autophagy- Rozah- Farsi Word)

Japanese cell biologist Yoshinori Ohsumi won the Nobel Prize in Medicine in 2016 for his research on how cells recycle and renew their content, a process called autophagy. Fasting activates autophagy, which helps slow down the aging process and has a positive impact on cell renewal.

Significance: Autophagy is a highly conserved eukaryotic cellular recycling process. Through the degradation of cytoplasmic organelles, proteins, and macromolecules, and the recycling of the breakdown products, autophagy plays important roles in cell survival and maintenance.

- **Physical benefits of fasting:**

Besides, even in Ramadan, it is scientifically proven that little amount of consumption is better than huge amount of consumption. In other words, eating little at the time of breaking the fast and at the time of *suhur* is better than filling the whole stomach. That was the practice of Prophet Muhammad (PBUH). Allah says:

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا ۚ

”And whatsoever the Messenger gives you, take it, and whatsoever he forbids you, abstain from it“.

59:07

Some of the Sunnah of Ramadan:

- Having the Suhur. The Prophet Muhammad sm said: “You should have suhur for there is **blessing** in suhur”. (Muttafaq Alaihi)

Moreover, due to suhur Muslims wake up before Fajr providing them to pray *Tahajjud* and other extra duas as well as performing fajar after having suhur.

- Making dua at the time of Ifter for the chance of acceptance of the dua is very high.

Taraweeh– *Tahajjud– Qiyamullayl.*

- Performing the **Tarawih salat**. It is an unique opportunity to listen to the Quran and do some extra dua and dhikr.
 - **Performing I'tikaf** at the last ten days. It provides Muslims the opportunity to seclude themselves for complete devotion and to be isolated from all kinds of **worldly affairs**.
 - **Recitation of the whole Quran at least once**. Jibrael A. used to teach Quran the Prophet Muhammad sm in Ramadan.
 - Spending **extra charity** for the sake of Allah, particularly the *sadaqatul Fitr* on behalf of every individuals. The Prophet Muhammad sm said that
- “Sadaqatul Fitr is prescribed for Muslims to compensate the mistakes of fasting and provide sustenance for the poor”.

(Nasaee)

Acts That Nullify the Fast & Require Makeup & Expiation

- Acts that invalidate the fast and require a makeup along with expiation only relate to the current Ramadan fasts.
- If done deliberately, by **one's own free will**, and without a valid reason while fasting a current Ramadan fast, the following acts invalidate the fast and require a makeup along with expiation:
 1. eating or drinking something that humans would normally consume and this consummation nourishes, medicates or pleases the body in some way.
 2. actual sexual intercourse, in the front or rear private part, regardless if one ejaculated or not
 3. swallowing the saliva of one's spouse

What is the Expiation?

- The expiation is to fast sixty consecutive days in the year without any interruption.
- The only exceptions to this rule are if one is menstruating or in a state of lochia (post-natal bleeding)
- If one is genuinely unable to perform the sixty consecutive fasts based on reasonable surety, then one must either:
 - a. feed the same sixty, poor people to their fill for two meals, or
 - b. feed one poor person to his fill for two meals a day for sixty days, or
 - c. give sixty poor people half a sa' of wheat (or similar food grains) or its monetary value, or
 - d. give sixty poor people a sa' of dates (or similar food grains) or its monetary value, or
 - e. give one poor person either food for sixty days.

Acts That Vitate the Fast & Require Make Up But Do Not Require Expiation

It also includes any makeup fast one vitiated while trying to make it up.

The Mouth & Throat:

- eating or drinking
- eating or drinking because one thought Maghrib entered but Maghrib did not enter
- eating or drinking because one doubted that Fajr not entered but Fajr really did enter
- eating or drinking forgetfully and thereafter thinking that the fast is broken, to deliberately eat and drink again

رفع عن أمتي الخطأ والنسيان. “To Err is Human”

- swallowing what is between the teeth, on the condition that it is the size of a chickpea or bigger
- swallowing a pebble or other items that people wouldn't typically eat
- swallowing water by accident when gargling for wudu or ghusl (with the exception of water that remains in the mouth—see next category)
- swallowing blood that exits from the gums and preponderates over the saliva
- swallowing toothpaste or mouthwash

- deliberately swallowing vomit that reaches a mouthful
- deliberately vomiting a mouthful, regardless if one swallows it or not
- vomiting and thereafter thinking that the fast is broken, to deliberately vomit again
- smoke that enters the throat by one's doing, on the condition one's body doesn't benefit from it
- kissing that causes one to ejaculate, on the condition one did not swallow the other's saliva

The Private Parts:

- engaging in sexual intercourse because one still thinks Fajr has not entered but it really has entered.
- engaging in sexual intercourse forgetfully and thereafter thinking that the fast is broken, to deliberately have sexual intercourse again.
- entering a suppository into the anus
- entering something dry into the anus and it completely disappears inside the body
- entering something wet or oiled into the anus, even if it does not completely disappear inside of the body

The Nose:

- water used to clean the nose for wudu or ghusl reaches the throat or the brain
- inhaling medicine into the nostrils
- inhaling smoke by one's doing, on the condition one's body doesn't benefit from it

The Body in General:

- touching that causes one to ejaculate (this includes masturbation)
- applying medicine to an open abdominal or head wound and it reaches the stomach or the brain.

Summary : Fasting in Islam

fiqhus Siyam- فقه الصيام

- A general overview of Fasting
- Benefits of fasting
- Rules regarding fasting
- Utilizing this special blessings

- Reference book:
 - Shabbir Ahmed E. Desai, (2008), **Taleemul Haq, An Authentic Compilation on the Five Fundamentals of Islaam**, IslamicBulletin.com.
 - Jabir al-Jazairi, Abu Bakar, (2001), **Minhaj Al-Muslim: A Book of Creed, Manners, Character, Acts of Worship and Other Deeds**, Riyadh, Dar-Us-Salam Publications.

Exam Preparation Guidelines:

- ✓ How do you glorify Fasting and the month of Ramadan in your Eye?
- ✓ “if one does not abandon from falsehood and other actions like it, God has no need that one should abandon one's food and drink” (Bukhari), How to apply the Concept of Fasting in your Daily Life according to this Hadith .
- ✓ Explain the Physical Benefits of Fasting in the Light of “Autophagy” concepts with its philosophical basis.





Feel free to ask me anything.

-Muhsin Mashkur

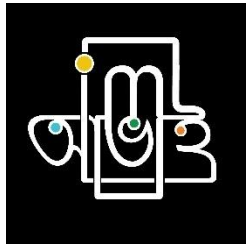
+8801811996981

Mohsin.tve@iut-Dhaka.edu

<https://bd.linkedin.com/in/muhsinmashkur>

<https://10minuteschool.com/skills/courses/127/quran-bojhar-hatekhor-free-online-course/>

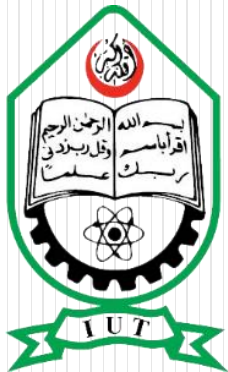
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Hajj / Pilgrimage in Islam

فقه الحج - fiqh al-Hajj

- Ibadaats
 - Purification
 - Prayer/Salah
 - Zakah
 - - Islamic Economics/ Economic System in Islam
 - Fasting/Sawm
 - Hajj



What do you know about Hajj????

- Hajj : A general overview
- Historical background
- Hajr-al-Aswad (Black Stone)
- Hajj as a pillar of Islam:
- Who should perform Hajj?
- Spiritual dimensions of Hajj
- Types of Hajj
- Benefits of Umrah
- Meeqaat
- The Pillars (Arkan) of Hajj
- The Wajib (Obligatory) acts of Hajj
- Issues related to women and Hajj

Hajj : A general overview

Hajj represents a couple of core characteristics of Islam. They are:

- It represents Muslims divine servitude to Islam. As long the Prophet sm ordered Muslims to perform Hajj with maintaining some different activities including Tawaf, **Say'ee**, throwing stones etc. **Whether these made sense to them or not, they implemented prophet's order without question.** That is one of the highest form of submissions to Islam.

Allah says:

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا ۚ

”And whatsoever the Messenger gives you, take it, and whatsoever he forbids you, abstain from it“.

59:07

- Hajj is a means to connect the Muslims to their Father Ibrahim A. as the rituals of Hajj and moving around the Ka'ba', which was built by him, remind Muslims of Ibrahim and his story in Makkah.
- Hajj is also a sign of Muslim greater brotherhood and strengthens the sense of **Ummatic concerns irrespective of nationality, color and wealth**. Allah says:

يَا أَيُّهَا النَّاسُ إِنَّا خَلَقْنَاكُمْ مِنْ ذَكَرٍ وَأُنْثَىٰ وَجَعَلْنَاكُمْ شُعُوبًا وَقَبَائِلَ لِتَعَارَفُوا ۚ إِنَّ أَكْرَمَكُمْ عِنْدَ اللَّهِ أَتْقَاكُمْ ۚ إِنَّ اللَّهَ عَلِيمٌ خَبِيرٌ ﴿١٣﴾

“O mankind! Lo! We have created you male and female, and have made you nations and tribes that ye may know one another. Lo! the noblest of you, in the sight of Allah, is the best in conduct. Lo! Allah is Knower, Aware”.

- Hajj revives special feelings and consciousness in Muslims. It inspires Muslims to be more compassionate toward other Muslims.
- It reminds Muslims of the Prophet sm and his companions and their persecutions in the early era of Islam.
- It inspire the feeling of special devotion to Allah.
- It help Muslims to be detached from worldly life and to be focused on the life hereafter.

Hajj: A Historical perspective

Allah commanded Prophet Ibraheem (may Allah's peace be upon him) to leave his second wife **Haajar** and their newly born son Ismail (may Allah's peace be upon him) alone in the uninhabited valley of Bakkah (Makkah). Narrated Ibn Abbas (may Allah be pleased with him): Ibraheem brought her and her son Ismail while she was suckling him, to a place near the Ka'bah under a tree on the spot of Zamzam, at the highest place in the mosque. During those days there was nobody in Makkah, nor was there any water. So he made them sit over there and placed near them a leather bag containing some dates, and a small water-skin containing some water, and set out homeward.

Ismail's mother followed him saying, 'O Ibraheem! Where are you going, leaving us in this valley where there is no person whose company we may enjoy, nor is there anything (to enjoy)?' She repeated that to him many times, but he did not look back at her. Then she asked him, 'Has Allah ordered you to do so?' He said, 'Yes.' She said, 'Then He will not neglect us', and returned while Ibraheem proceeded onwards, and on reaching the Thaniya where they could not see him, he faced the Ka'bah, and raising both hands, invoked Allah saying the following prayers:

رَبَّنَا إِنِّي أَسْكَنْتُ مِنْ ذُرِّيَّتِي بِوَادٍ غَيْرِ ذِي زَرْعٍ عِنْدَ بَيْتِكَ الْمُحَرَّمِ رَبَّنَا
لِيُقِيمُوا الصَّلَاةَ فَاجْعَلْ أَفْئِدَةً مِّنَ النَّاسِ تَهْوِي إِلَيْهِمْ وَارْزُقْهُمْ
مِّنَ الثَّمَرَاتِ لَعَلَّهُمْ يَشْكُرُونَ ﴿٣٧﴾

"Oh our Lord! I have made some of my offspring to dwell in a valley with no cultivation, by your Sacred House (the Ka'bah at Makkah); in order, Oh our Lord, that they may offer prayers perfectly, so fill some hearts among men with love towards them, and (Oh Allah) provide them with fruits so that they may give thanks." 14: 37

Ismail brought the stones and Ibraheem was building, and when the walls became high, Ismail brought this stone and put it for Ibraheem who stood over it and carried on building, while Ismail was handing him the stones, and both of them were saying, 'O our Lord! Accept (this service) from us, Verily, You are the All-Hearing, the All-Knowing'. "

(Bukhari)

Allah says:

وَإِذْ بَوَّأْنَا لِإِبْرَاهِيمَ مَكَانَ الْبَيْتِ أَنْ لَا تُشْرِكْ بِي شَيْئًا وَطَهِّرْ
بَيْتِيَ لِلطَّائِفِينَ وَالْقَائِمِينَ وَالرُّكَّعِ السُّجُودِ ﴿٢٦﴾

“And (remember) when We prepared for Abraham the place of the (holy) House, saying: Ascribe thou no thing as partner unto Me, and purify My House for those who make the round (thereof) and those who stand and those who bow and make prostration”. 22:26

Hajr-al-Aswad (Black Stone): A special stone was placed in its eastern corner to mark the starting point for the circling of the Ka'bah. This stone according to the Prophet's explanation was originally shining white in colour when it was brought down from Paradise. However, due to the sins of man it changed to its present colour of black, hence the name Hajr-al-Aswad (the Black Stone). Narrated Ibn Abbas (may Allah be pleased with him), Allah's Messenger said, "The black stone descended from Paradise whiter than milk, but the sins of the descendants of Adam made it black.“ (Ahmad and Tirmiji)

Hajj as a pillar of Islam:

Hajj is the 5th pillar of Islam. It is obligatory for those Muslims who can afford to make the journey to Makkah. It is a once in a lifetime obligation. It is performed from the 8th to the 13th of Dhul-Hijja, which is the 12th month of the Hijra (lunar) calendar. Allah instructed Prophet Ibraheem:

وَأَذِّنْ فِي النَّاسِ بِالْحَجِّ يَأْتُوكَ رِجَالًا وَعَلَى كُلِّ ضَامِرٍ يَأْتِينَ
مِنْ كُلِّ فَجٍّ عَمِيقٍ ﴿٢٧﴾

“And proclaim among men the Pilgrimage: they will come to you on foot and on every lean camel, coming from every remote path”. 22:27

Allah also says:

وَلِلّٰهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ اِلَيْهِ سَبِيْلًا ۚ وَمَنْ كَفَرَ فَاِنَّ اللّٰهَ
غَنِيٌّ عَنِ الْعَالَمِيْنَ ﴿٩٧﴾

And Hajj (pilgrimage to Makkah) to the House (Ka'bah) is a duty that mankind owes to Allah, those who can afford the expenses (for one's conveyance, provision and residence); and whoever disbelieves (i.e. denies Hajj, then he is a disbeliever of Allah), then Allah stands not in need of any of the Alamin (mankind and jinn)."

3:97

- **Hajj Wipes off Past Sins** Abu Hurairah (may Allah be pleased with him) reported that the Prophet said: "He who performs Hajj for Allah's pleasure and avoids all lewdness and sins will return after Hajj free from all sins as he was the day his mother gave birth to him."

(Bukhari and Muslim)

• **Who should perform Hajj?**

- Allah does not wish to make things difficult for the Muslims. Apart from the duty being fardh (compulsory) only once in a lifetime, there are certain other conditions that have to be met for one to be 'eligible':
 - 1. To be a Muslim
 - 2. To have reached puberty
 - 3. To be of sound mind
 - 4. To be free (not a slave)
 - 5. To have the financial means
 - 6. To possess the physical means
 - 7. To have a Mahram (for women)

Types of Hajj

There are three types or methods of performing Hajj. All three methods fulfill all the Islamic requirements for the Hajj.

- The one that most people perform is called Hajj **Tamattu (Enjoy)**. This is the Hajj the Prophet instructed his companions to perform. This is Hajj joined with Umrah with two separate niy'at {**One Travel_Two Niy'at_Two Ihram_Umrah & Hajj**}.
- The other two methods are: Hajj **Qiran- (Doing Together)** (Umrah and Hajj, with one niyah) {**One Travel_One Niy'at_One Ihram_Umrah & Hajj**}.
- Hajj **Ifrad (single/Alone)** : the Hajj only {**One Travel_One Niy'at_One Ihram_Only Hajj**}.
- .

Benefits of Umrah

Ibn 'Abbas reported that the Prophet sm said, "An 'Umrah in the month of Ramadaan is equal (in reward) to performing a Hajj." (This does not, however, remove from one the obligation of performing the obligatory Hajj)."

(Ahmad and Ibn Majah)

Abu Hurairah reported that the Prophet said, "From one 'Umrah to the next is an atonement for any sins committed in between, and the reward for an accepted Hajj is nothing but Paradise."

(Bukhari and Muslim)

The Pillars (Arkan) of Hajj The pillars of Hajj are the rites that are mandatory for the validity and completion of the Hajj.

1. Ihraam (with niyah).
2. Standing at Arafat.
3. Tawaaf-al-Ifadah (Tawaaf for Hajj).
4. Sa'ee for Hajj.

The Wajib (Obligatory) acts of Hajj: The obligatory rites of Hajj are the rites that if omitted require the pilgrim to offer a Fidyah (expiation). This is a sacrifice commonly known as *dam*. Many scholars rule that if these rites are omitted intentionally (premeditated) without any valid reason, then the Hajj is incomplete.

1. Ihraam at the meqaat.
2. Being at Arafat until sunset.
3. To spend the night (or part of) in Muzdalifah.
4. To *ramy* (cast pebbles) at the jamr'at.
5. To shave the head or cut the hair.
6. To spend the nights of Tashreek in Mina.
7. To perform Tawaaf-al-Wadaa.

- **The things which are prohibited in ihraam are things which a person must refrain from doing because of being in ihraam. They are:**

1. Shaving the hair of the head
 2. Using perfume after entering ihraam, whether on one's clothes or body, or in one's food or when washing the deceased muhrim or in any way whatsoever. Using perfume is forbidden in ihraam
- 3. Intercourse

4. Touching one's wife with desire, because this comes under the general meaning of the phrase "he should not have sexual relations (with his wife)", and because it is not permissible for the muhrim (person in ihraam) to get married or to propose marriage – so it is more likely that it is not permissible for him to touch his wife with desire.
5. Killing game (hunting)

- 6 – A prohibition which applies exclusively to men is wearing shirts, hooded robes, trousers, turbans and leather slippers. But he (peace and blessings of Allaah be upon him) made an exception for one who cannot find an izaar (lower garment or waist wrapper), who may wear trousers, and one who cannot find sandals, who may wear leather slippers.
7. – One of the prohibitions of ihraam that applies only to women is niqaab refers to a veil that covers the face and leaves the eyes uncovered, because the Prophet (peace and blessings of Allaah be upon him) forbade that. A similar prohibition applies to the burqa'. When a woman enters ihraam, she should not wear a niqaab or burqa'. It is prescribed for her to leave her face uncovered except when a non-mahram man passes by her, when she must cover her face and it does not matter if this cover touches her face.

Issues related to women and Hajj:

Mahram: The obligation of Hajj is the same for women as it is for men. However, a woman has to meet one additional requirement for eligibility, namely to have a Mahram. A mahram for any woman is her husband or any male she is prohibited from marrying forever because of a relationship resulting from either blood, marriage, or breast-feeding. Examples of mahram are brothers, fathers, and uncles. Brothers-in-law or cousins are NOT mahram).

Ihraam and Clothing: Unlike men, the Ihraam clothes for women are their normal clothes and can be of any colour. No attractive clothes, perfume or make-up should be worn during Hajj or while going to the mosque or in the company of non-mahram men. Other points regarding the clothes: 1. The material itself must not be decorative. 2. It must be thick enough to be completely opaque. 3. It must be loose enough as not to make clear the shape of her body. 4. It must not resemble the dress of men. 5. Or resemble the dress of disbelieving women. 6. It must not be ostentatious

- Reference book:
 - Shabbir Ahmed E. Desai, (2008), **Taleemul Haq, An Authentic Compilation on the Five Fundamentals of Islaam**, IslamicBulletin.com.
 - Jabir al-Jazairi, Abu Bakar, (2001), **Minhaj Al-Muslim: A Book of Creed, Manners, Character, Acts of Worship and Other Deeds**, Riyadh, Dar-Us-Salam Publications.

Exam Preparation Guidelines:

- ✓ Explain the Historical perspective of Hajj.
- ✓ Discuss the Types of Hajj with the Pillars (Arkan) of Hajj and the Wajib (Obligatory) acts of Hajj.
- ✓ What is the difference between hajj and Umrah? Discuss the Benefits of hajj and Umrah.





Feel free to ask me anything.

-Muhsin Mashkur

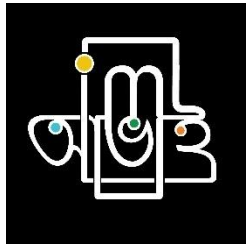
+8801811996981

Mohsin.tve@iut-Dhaka.edu

<https://bd.linkedin.com/in/muhsinmashkur>

<https://10minuteschool.com/skills/courses/127/quran-bojhar-hatekhor-free-online-course/>

<https://tve.iutoic-dhaka.edu/profile/M.Mohsin/education>



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**What do you know about
Environment???**

What do you know about

Environmental Protection in Islam???

Outline: Environmental Protection In Islam

- Ibadaats
 - Environmental Protection In Islam
- Importance
- Environmental Approach of Quran
- Environmental Approach of Hadith/ Sunnah
- Environmental Sustainability in Islam
- Environment Protection and Resource Conservation
- The approach of Islam towards the use of natural resources
- Spreading Environmental Awareness
- Protection of environment is the duty of every Muslim
- Conclusion



Importance

- There is an inseparable relation between the environment and our soul. It will be great if Muslims in particular and the wider world in general learn from the Holy Scriptures, like the Holy Qur'an and Hadith, to try to wage an eco-friendly jihad (noble effort) to promote environmental balance and stability. This will be the true jihad to please God and ensure easy entry to heaven, in the existing world, not to speak of the hereafter. Thus, we can taste the bliss of heaven on this planet before we chance upon the eternal paradise.

Environment protection is an important aspect of Islam. Being stewards of the Earth, it is the responsibility of Muslims to care for the environment in a proactive manner. There is a definite purpose behind the creation of different species, be it plants or animals. Muslims are encouraged to reflect on the relationship between living organisms and their environment and to maintain the **ecological balance created by Allah.**

Protection of the environment is essential to Islamic beliefs and mankind has the responsibility to ensure safe custody of the environment.



Environmental Approach of Quran

The Holy Qur'an offers a completely integrated view of the universe, where the human soul and the environment, mind and matter are all part of one living, conscious whole. Therefore, it exhorts man to live a balanced, moderate and an eco-friendly life without causing any harm to nature.

It says, for instance: **“And do not commit abuse on the earth, spreading corruption.”** (Qur'an, 2:60),

and elsewhere: **“And do not desire corruption in the land. Indeed, God does not like corruptors.”** (Qur'an 28:77).

From the Qur'anic perspective, corruption on the earth is not confined to only political crimes, such as frauds, theft, rape, illegal banking or other prevalent malpractices. Deforestation, dumping toxic wastes and indiscriminate use of pesticides are also grave corruption on the earth and hence brazen violation of Islamic values. This corruption is today rampant at all levels of public and social life in this age of consumerism and covetousness. It is indeed a matter of grave concern for the entire human kind.

He (Allah) created everything and determined them in exact proportions (25: 2).

The human community is but an infinitesimal part of the natural world but we have now lost sight of this through our proclivity for dominating it. The Qur'an observes:

لَخَلْقُ السَّمَاوَاتِ وَالْأَرْضِ أَكْبَرُ مِنْ خَلْقِ النَّاسِ وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ ﴿٥٧﴾

The creation of the heavens and the earth is far greater than the creation of humankind. But most of humankind do not know it (40: 57).



Environmental Approach of Hadith/Sunnah

Prophet Muhammad (pbuh) left a noble example of being eco-friendly and going green in his life. He spent his entire life in an eco-friendly effort, helping humankind, caring for other creatures of God, preserving the earth, planting trees and protecting the environment. Right from his young age, he was inclined towards preservation of trees. When he was just 12, he travelled to Syria with his uncle and took shelter under a tree. Today, after more than 14 hundred years, the same tree is still alive in the northern deserts of Jordan. This tree, which sheltered the Prophet, is the only living tree in hundreds of square miles of emptiness. It speaks eloquently of the Prophet's utmost care for the preservation of trees.

- The Prophet was keen on planting trees and exhorted his Companions, too, to do so.

He said, “Whoever plants a tree and diligently looks after it until it matures and bears fruit is rewarded” (Source: *Musnad*).

This saying is sufficient to apprise us of the eco-friendly nature of Islam. Planting a tree is a *sadaqah jariyah* (continued charity) in Islam, for the poor and the rich alike. Whenever a human being or even an animal shelters under the shade of a tree or relishes a fruit that it produces, the planter will earn rewards, even after his or her death.

- There are more such beautiful traditions of the Prophet that serve as gentle reminders for us to reflect on Islam as an environment-friendly faith. These traditions exhort us to care for all creatures, to protect the environment, to conserve water, to preserve the nature and to care for all living beings, including trees and animals.

- Considering tree-planting a renewable source of reward, the Prophet said: “If a Muslim plants a tree or sows seeds, and then a bird, or a person or an animal eats from it, it is regarded as a charitable gift (*sadaqah*) for him.” (*Bukhari*)

One day Prophet (s.a.w.) passed by Sa`d ibn Abi Waqas (r.a) while he was performing *wudu*'. The Prophet (saw) asked Sa`d: "What is this wastage?" Sa`d replied: "Is there wastage in *wudu* also?" The Prophet said, "Yes, even if you are at a flowing river." (*Ibn Majah*)

Subhanallah!!!

Subhanallah!!!

Subhanallah!!!

- Likening a believer with a growing tree, the Prophet (s.a.w.) said: “The example of a believer is that of a fresh tender plant; from whatever direction the wind comes, it bends it, but when the wind quietens down, the plant becomes straight again...”
(*Bukhari*)

- Reminding Muslims of how important it is to keep the environment sanitary to maintain the community, the Prophet (s.a.w.) stated: “Beware of the three acts that cause you to be cursed: First, relieving yourselves in shaded places (that people utilise), in a walkway or in a watering place.....”
- Similarly, the Prophet (saw) gave paramount importance to street clean-ups, when he said: “Removing harmful things from the road is an act of charity (*sadaqah*).” (Narrated by Abu Dharr Al-Ghafari, *Riyadh As Saliheen*)



Environmental Sustainability in Islam

- Islamic beliefs, traditions and values provide an effective and comprehensive solution to the current environmental challenges faced by the human race. Islam has a rich tradition of highlighting the importance of environmental protection and conservation of natural resources.

- The Holy Qur'an and Sunnah are a guiding light to promote **sustainable development**. According to Islamic law, the basic elements of nature – land, water, fire, forest, and light – belong to all living things, not just human beings.

Allah (Subhanahu Wa Ta'ala) commands human beings to avoid doing mischief and wasting resources as these acts cause degradation of the environment. The privilege to exploit natural resources was given to the mankind on a guardianship basis, which implies the right to use another person's property on the promise that it will not be damaged or destroyed.



Environment Protection and Resource Conservation

The **Islamic perspective** on environment protection reflects a positive image about Islam and how it embraces every single matter the humans face on earth. The Islamic attitude towards environment and natural resource conservation is not only based on prohibition of over-exploitation but also on **sustainable development**.

Lets talk about UNSDs.



The Holy Quran says about Environment Protection and Resource Conservation:

وَهُوَ الَّذِي جَعَلَكُمْ خَلَائِفَ الْأَرْضِ وَرَفَعَ بَعْضَكُمْ فَوْقَ بَعْضٍ دَرَجَاتٍ لِّيَبْلُوَكُمْ فِي مَا آتَاكُمْ ۚ إِنَّ رَبَّكَ سَرِيعُ الْعِقَابِ وَإِنَّهُ لَغَفُورٌ رَّحِيمٌ ﴿١٦٥﴾

“And it is He who has made you **successors upon the earth** and has raised some of you above others in degrees [of rank] that He **may try you through what He has given you**. Indeed, your Lord is swift in penalty; but indeed, He is Forgiving and Merciful.” (Surah 6:165)

The Holy Quran says about Environment Protection and Resource Conservation:

“O children of Adam! ... eat and drink: but waste not by excess, for Allah loves not the wasters.” (Surah 7:31)

Prophet Muhammad (SAW) encouraged the planting of trees and the cultivation of agriculture which are considered as good acts. This is illustrated in the following traditions:

Narrated by Anas bin Malik (RA) that Allah's Messenger (SAW) said: "There is none amongst the Muslims who plants a tree or sows seeds, and then a bird, or a person or an animal eats from it, but is regarded as a charitable gift for him."
(Bukhari).



The approach of Islam towards the use of natural resources

The approach of Islam towards the use of natural resources was brilliantly put forward by the Fourth Caliph Hazrat Ali ibn Abi-Talib (RA) who said:

“Partake of it gladly so long as you are the benefactor, not a despoiler; a cultivator, not a destroyer. All human beings as well as animals and wildlife enjoy the right to share Earth’s resources. Man’s abuse of any resource is prohibited as the juristic principle says ‘What leads to the prohibited is itself prohibited’.

When Abu Musa (RA) was sent to Al-Basrah as the new governor, he addressed the people saying:

“I was sent to you by ‘Umar ibn Al-Khattab (RA) in order to teach you the Book of your Lord [i.e. the Qur’an], the Sunnah [of your Prophet], and to clean your streets.”

- Abu Hurairah reported that the Messenger of Allah (Peace Be Upon Him) forbade that a person relieve himself in a water source or on a path or in a place of shade or in the burrow of a leaving creature.

These values highlight Islam’s stress on avoiding pollution of critical resources and importance of cleanliness.

Islam is against the cutting or destruction of plants and trees unnecessarily as is evident in the following Hadith: Abdullah ibn Habashi reported that Prophet Muhammad (SAW) said: “He who cuts a lote-tree [without justification], Allah will send him to Hellfire.” (Abu Dawud).

The lote-tree grows in the desert and is very much needed in an area which has scarce vegetation. The devastation caused by deforestation in many countries causes soil erosion and kills many of the biodiversity of the earth.



وَلَا تَمْشِ فِي الْأَرْضِ مَرَحًا إِنَّكَ لَنْ تَخْرِقَ
الْأَرْضَ وَلَنْ تَبْلُغَ الْجِبَالَ طُولًا

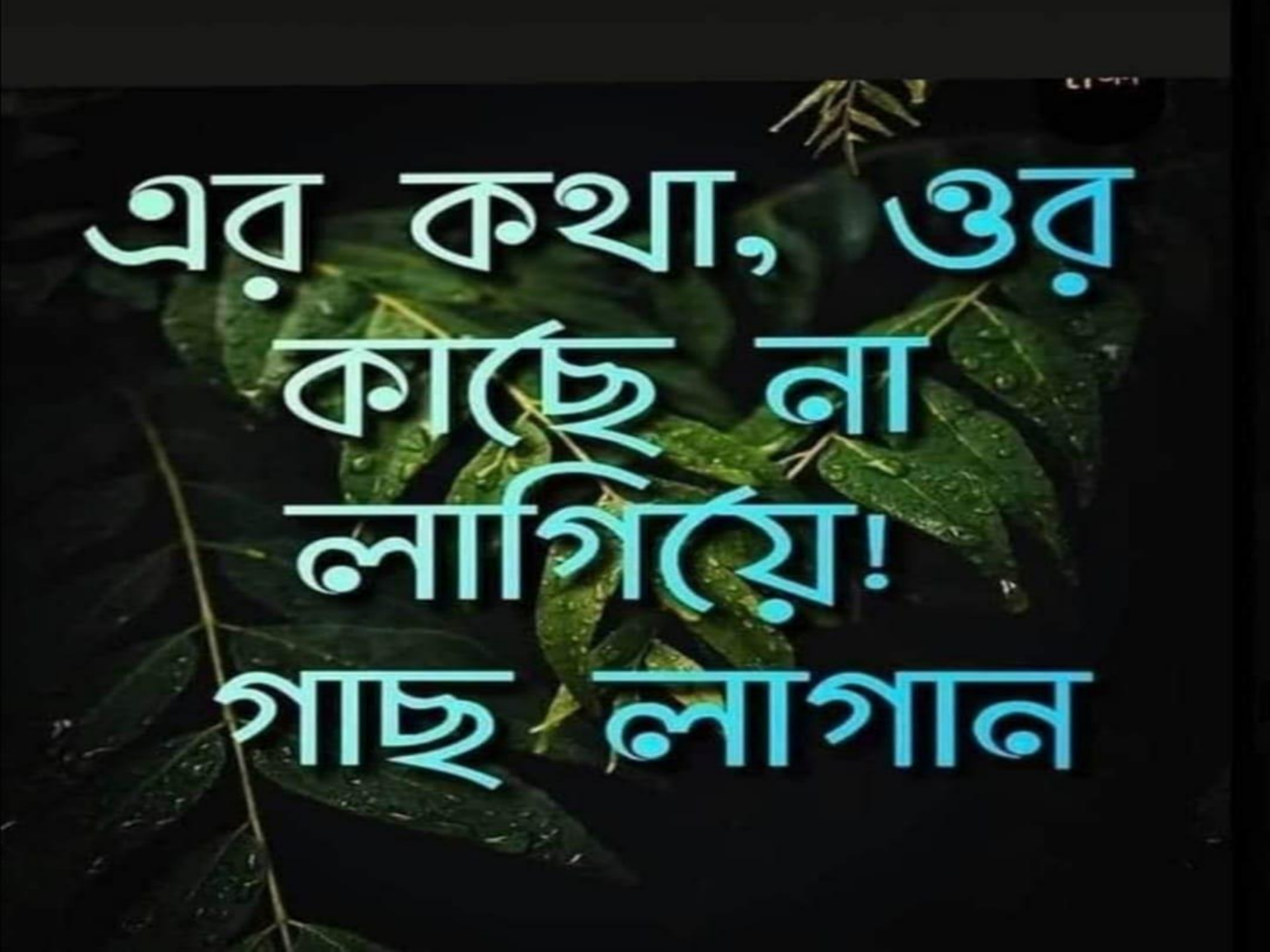
**Do not walk proudly on the earth;
your feet cannot tear apart the earth
nor are you as tall as the mountains.**



Spreading Environmental Awareness

There are various ways which you can raise environmental awareness in your personal and professional circles. The popularization of social networking among young generation makes it easier and attractive to spread environmental awareness using Facebook, Twitter, Google+ etc.

A great idea would be to start your own school, college or workplace campaign for planting trees. Students, faculty members and co-workers can be motivated to donate a nominal amount of money towards plantation campaign. Keeping plants around your home, school or workplace is not only aesthetic and decorative but also keep you healthy and improve indoor air quality.



এব কথ্য, ওব
কাছে না
লাগিয়ে!
গাছ লাগান

According to Hazrat Jabir (RA) reported that Prophet Muhammad [S.A.W] said: “No Muslim, who plants a shoot, except that whatever is eaten or stolen from it, or anyone obtains the least thing from it, is considered [like paying] alms giving on his behalf until the Day of Judgement.”
(Muslim)

**Protection of environment is the
duty of every Muslim**

God has created everything in this universe in due proportion and measure both quantitatively and qualitatively. God has declared in the Qur'an:

“Verily, all things have We created by measure” (Qur'an 54:49)

“...Everything to Him is measured.” (Qur'an 13:8)

“And We have produced therein everything in balance.” (Qur'an 55:7)

In the universe there is enormous diversity and variety of form and function. The universe and its various elements fulfill human welfare and are evidence of the Creator's greatness; He it is Who determines and ordains all things, and there is not a thing He has created but celebrates and declares His praise.

“Have you not seen that God is glorified by all in the heavens and on the earth — such as the birds with wings outspread? Each knows its worship and glorification, and God is aware of what they do.” (Qur'an 24:41)

God says:

“We have not created the heavens and the earth and all that is between them carelessly. We have not created them but for truth.” (Qur’an 44:38-39)

Thus, the Islamic vision revealed in the Qur’an is of a universe imbued with value. All things in the universe are created to serve the One Lord Who sustains them all by means of one another, and Who controls the miraculous cycles of life and death:

“God it is that splits the seed and the date stone, brings the living from the dead and the dead from the living: That is your God — how are you turned away?” (Qur’an 6:95)

The Prophet declared said: “The world is beautiful and verdant, and verily God, be He exalted, has made you His stewards in it, and He sees how you acquit yourselves.” (Saheeh Muslim)

All of the resources upon which life depends have been created by God as a trust in our care. He has ordained sustenance for all people and for all living beings.

“And He has set within it mountains standing firm, and blessed it, and ordained in it its diverse sustenance in four days, alike for all that seek.” (Qur’an 41:10)

Thus, in Islam the utilization of these resources is the right and privilege of all people and all species. Hence, man should take every precaution to ensure the interests and rights of all others since they are equal partners on earth.



Conclusion:

Environmental awareness and protection of natural resources is an integral part of Islamic beliefs. As viceroys of Allah on this earth, we have to utilize natural resources in a sustainable manner in order to ensure that Allah's Bounties to continue. The principle of conservation is **beautifully illustrated** by the rule which says that while making ablutions (wudu) we should be abstemious in the use of water even if we have a river at our disposal.

- As humans, we are keepers of all creation, including soil, air, water, animals and trees. A major objective of Islamic teachings and Prophet (Peace Be Upon Him) traditions is to build and maintain a **healthy and clean environment** which is devoid of any source of pollution and misuse.

Summary

- Ibadaats
 - Environmental Protection In Islam
- Importance
- Environmental Approach of Quran
- Environmental Approach of Hadith/ Sunnah
- Environmental Sustainability in Islam
- Environment Protection and Resource Conservation
- The approach of Islam towards the use of natural resources
- Spreading Environmental Awareness
- Protection of environment is the duty of every Muslim
- Conclusion

Reference

Environmental protection in Islam

by Al Glenid, Mohamed Al Sayyed, Al Sabbagh, Abdul Latif Tawfik El Shirazy, Ba Kader, Abou Bakr Ahmed, Izzidien, Mouel Yousef Samarraï, Llewellyn, Othman Abd-ar-Rahman.

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Link

<https://portals.iucn.org/library/sites/library/files/documents/EPLP-020-rev.pdf>

Exam Preparation Guidelines:

- ✓ Illustrate the concept of environmental stewardship (*khalifah*) with references from the Quran and Sunnah. Provide examples of how this responsibility (*khalifah*) applies to modern environmental challenges.
- ✓ Islamic teachings emphasize balance (Mizan) and moderation (Wasatiyyah) in using natural resources. Discuss the Islamic approach to resource conservation (forests, water, and wildlife) with reference from the Quran and Sunnah.



Feel free to ask me anything.

-Muhsin Mashkur

+8801811996981

muhsin.du@gmail.com

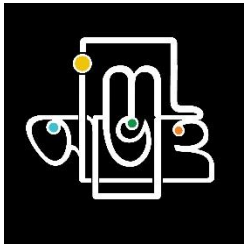
Mohsin.tve@iut-Dhaka.edu

<https://bd.linkedin.com/in/muhsinmashkur>

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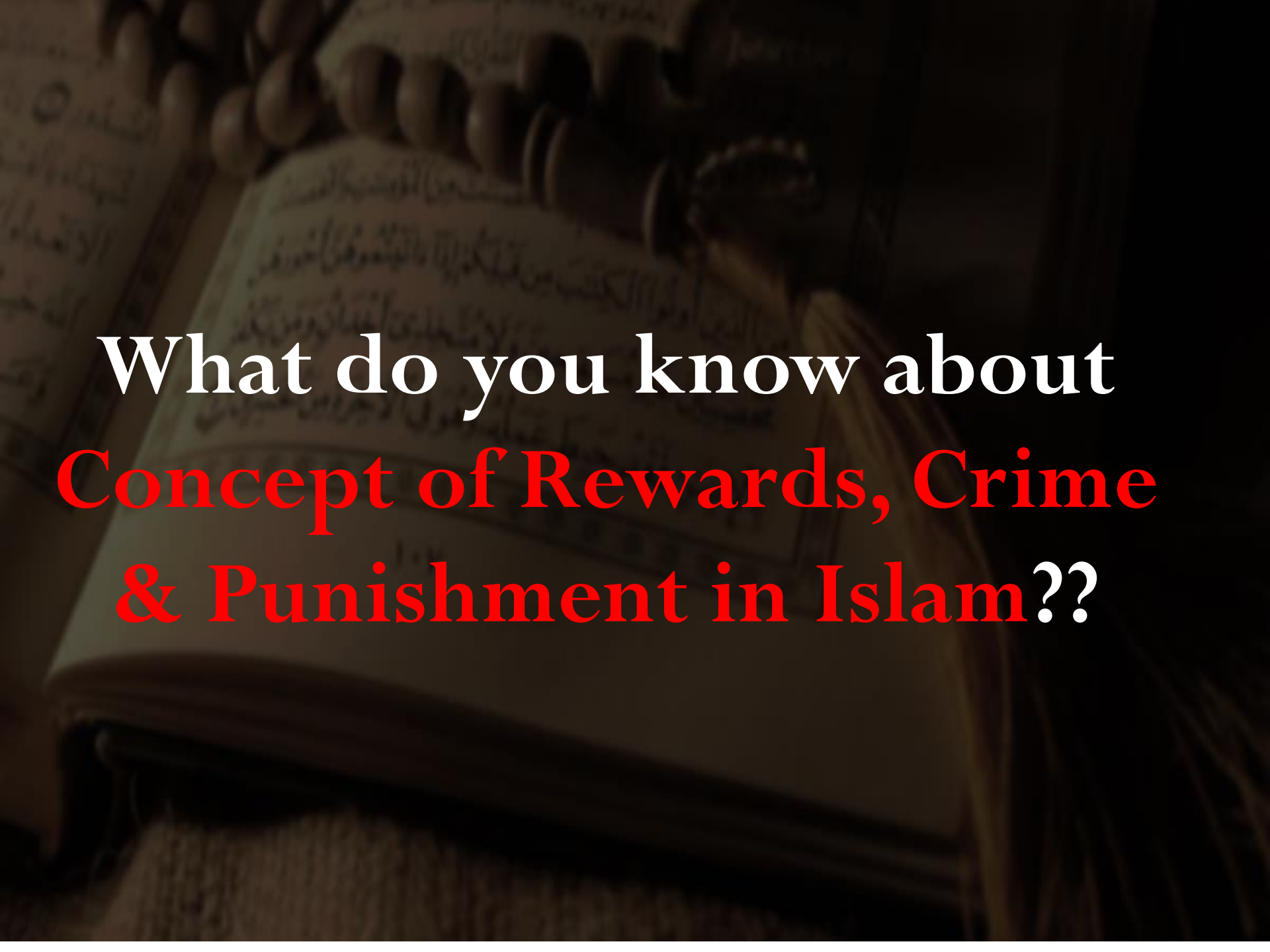


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Islamiat

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The background of the slide features a dark, atmospheric photograph. It shows an open book with pages of handwritten Arabic script, likely from the Quran. Resting on the pages are several strands of prayer beads (tasbeeh) made of small, light-colored beads. The lighting is soft and focused on the text, creating a sense of reverence and study.

**What do you know about
Concept of Rewards, Crime
& Punishment in Islam??**

Outline:

Concept of Reward, Crime & Punishment in Islam

(Fiqh- Al-Thawab Wa Al-Iqab) فِقْهُ الثَّوَابِ وَالْعِقَابِ

- The Islamic Approach to Combating Crime
- Distinguishing Features of the Islamic Penal System
- Forms of Punishment in Islam
 - 1. Prescribed punishments (Hadd)
 - 2. Retribution (Qisas)
 - 3. Discretionary punishments (Ta'zir)
- The Objectives of the Islamic Penal System

Outline: Concept of Rewards, Crime & Punishment in Islam

Background

The Concept of Reward and Punishment (Al-Thawab Wa Al-Iqab) الثَّوَابُ وَالْعِقَابُ in Islam: Good moral behavior is the basis of a successful Islamic life. Life on earth began as a test from Allah SWT to see if we could be His true servants and fight off the temptations of syaitan (devil). The holy Qur'an describes the Muslims as the true believers as:

“Believers are they who fear God and fear nothing else”.

However, sometimes things can be so difficult and this is where the motivation of reward and punishment helps. It really does play an important role in our life. The fact is that many people do operate on the basis of reward and punishment. In addition, Allah as our Creator and

In general, the preordainment implies reward for pious deeds and punishment for the impious actions. **The fact is that the man is free.** He is endowed with intellect and with it he is able to exercise control over material matters and distinguish and discriminate between fair and foul, righteous and unrighteous.

Reference-

Al Tantavi, A., n.d. A General Introduction To Islam. Jeddah: Islamic Publication Ltd. pp: 149.

- In Islam the concept of reward and punishment are subject to freedom. Without freedom, there would have been no punishment, for an evil done under compulsion is not punishable. The man is rewarded whenever he does something good and is punished when he does something foul. Moreover, Allah does not encumber anyone beyond his capacities and He is never failing in appreciating even the slightest good deed done by a person.
- Islamic Law pays the most careful attention to this matter and **provides a complete legal system.** It takes into consideration the changing circumstances of society as well as the constancy and permanence of human nature.

Crime & Punishment in Islam

- **The Islamic Approach to Combating Crime**
- The ultimate objective of every Islamic legal injunction is to secure the welfare of humanity in this world and the next by establishing a righteous society.
- This is a civilization that allows a person to fulfill his every spiritual, intellectual, and material need and cultivate every aspect of his being.

Crime & Punishment in Islam

- “We have sent our Messengers with clear signs and have sent down with them the **book** and the **criterion** so that man can establish justice. And we sent down iron of great strength and many benefits for man...” (Quran 57:25)
- “...Allah wants ease for you, not hardship...” (Quran 2:185)
- “Allah wants to make things clear for you and to guide you to the ways of those before you and to forgive you. Allah is the All knowing, the Wise. Allah wants to forgive you and wants those who follow their desires to turn wholeheartedly towards (what is right). Allah wants to lighten your burdens, and He has created man weak.” (Quran 4:26-28)

Crime & Punishment in Islam

Universal Principles

- Since the Islamic legal injunctions are aimed at achieving human welfare, they can all be referred back to universal principles which are necessary for human welfare to be secured. These universal principles are:
 - 1. The preservation of life.
 - 2. The preservation of religion.
 - 3. The preservation of reason.
 - 4. The preservation of lineage.
 - 5. The preservation of property.

Crime & Punishment in Islam

- The Islamic penal system is aimed at preserving these five universal necessities.
 - To preserve life, it prescribes the law of retribution.
 - To preserve religion, it prescribes the punishment for apostasy.
 - To preserve reason, it prescribes the punishment for drinking.
 - To preserve lineage, it prescribes the punishment for fornication.
 - To preserve wealth, it prescribes the punishment for theft.
 - To protect all of them, it prescribes the punishment for highway robbery.

Crime & Punishment in Islam

- It should therefore become clear to us why the crimes for which Islam for which the Law has prescribed fixed punishments are as follows:
 - 1. Transgression against life (murder or assault).
 - 2. Transgression against property (theft).
 - 3. Transgression against lineage (fornication and false accusations of adultery).
 - 4. Transgression against reason (using intoxicants).
 - 5. Transgression against religion (apostasy).
 - 6. Transgression against all of these universal needs (highway robbery).

Crime & Punishment in Islam

- **Distinguishing Features of the Islamic Penal System**
- The Islamic penal system also has unique virtues and distinguishing features, among the most important of which are the following:
 - 1. The inner deterrent of man's moral conscience is fully integrated with external supervision. This is due to the fact that Islamic Law, when dealing with social problems such as crime, does not rely merely on legislation and external deterrents. It focuses more on the internal deterrent, placing the greatest emphasis on man's moral conscience.

Crime & Punishment in Islam

- It endeavors to develop this conscience within a person from childhood so that he can be brought up with the noblest moral character.
- It promises success and salvation for those who work righteousness and warns wrongdoers of an evil fate. In this way, it stirs up emotions, making a criminal renounce his ways by inspiring him with faith in God, hope for divine mercy, fear of divine punishment, adherence to moral virtues, love for others, and a desire to do good to others and refrain from causing injury and harm.

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- 2. It has a balanced outlook with respect to the relationship between the individual and society. This becomes clear from the fact that while the Divine Law protects society by legislating punishments and preventative measures against crimes, it does not marginalize the individual for the sake of society. On the contrary, its priority is the protection of the individual, his freedom, and his rights. It provides every safeguard to leave no excuse for a person to have to resort to crime. It does not set out to punish without first preparing for the individual a situation conducive to a virtuous and happy life.

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- **Forms of Punishment in Islam**

- Islamic Law, in confronting the problems of life and setting down solutions for them, is established on two complimentary principles. These are: the stability and permanence of its basic tenets on the one hand and the dynamism of its subsidiary injunctions on the other.
- For the unchanging aspects of life, Islamic Law brings fixed statutes. For the dynamic aspects of life that are affected by social development, broadening horizons, and advances in knowledge, Islamic Law comes with general principles and universal rules capable of being applied in a number of different ways and in a variety of circumstances.

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- In accordance with this principle, punishments in Islamic Law are of three types:
 - 1. Prescribed punishments (**Hadd**)
 - 2. Retribution (**Qisas**)
 - 3. Discretionary punishments (**Ta'zir**)

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- **1. Prescribed Punishments - Hadd**
 - Crimes that fall under this category can be defined as legally prohibited acts that God forcibly prevents by way of fixed, predetermined punishments, the execution of which is considered the right of God.

Prescribed Punishments - Hadd

- The following crimes fall under the jurisdiction of the fixed punishments:
- **1. Theft**
 - Theft is defined as covertly taking the wealth of another party from its secure location with the intention of taking possession of it.

As for a man or a woman who commits theft, cut off the hands of both to punish them for what they earned, a deterrent punishment from Allah. Allah is Mighty, Wise. (5:38)

Prescribed Punishments - Hadd

- **2. Highway Robbery**
 - Highway robbery is defined as the activity of an individual or a group of individuals who go out in strength into the public thoroughfare with the intention of preventing passage or with the intention of seizing the property of passers-by or otherwise inflicting upon them bodily harm.

Those who fight against Allah and His Messenger and run about trying to spread disorder on the earth, their punishment is no other than that they shall be killed, or be crucified, or their hands and legs be cut off from different sides, or they be kept away from the land (they live in) [5:33] .

Prescribed Punishments - Hadd

- **3. Fornication and Adultery**

- This is defined as any case where a man has coitus with a woman who is unlawful to him. Any relationship between a man and a woman that is not inclusive of coitus does not fall under this category and does not mandate the prescribed, fixed punishment.

The fornicating woman and the fornicating man, flog each one of them with one hundred stripes. No pity for them should prevail upon you in the matter of Allah's religion, if you really believe in Allah and the Last Day; and a group of believers must witness their punishment. [24:2]

'Umar bin Khattab said: "...I have read it (in the Quran). "And if an old man and an old woman commit adultery, stone them both." The Messenger of Allah (SAW) stoned (adulterers) and we stoned (them) after him.' " (Ibn Majah - Sahih)

Prescribed Punishments - Hadd

- **4. False Accusation**

- This is defined as accusing the chaste, innocent person of fornication or adultery. It also includes denying the lineage of a person from his father (which implies that his parents committed fornication or adultery). False accusation includes any claim of fornication or adultery that is not backed up by a proof acceptable to Islamic Law.

Those who accuse the chaste women (of fornication), but they do not produce four witnesses, flog them with eighty stripes and do not accept their any evidence any more. They are the sinners. [24:4]

Prescribed Punishments - Hadd

- **5. Drinking**

- One of the most important objectives of Islam is the realization of human welfare and the avoidance of what is harmful. Because of this, it “permits good things and prohibits harmful things.” Islam, thus, protects the lives of people as well as their rational faculties, wealth, and reputations.
- The prohibition of wine and the punishment for drinking it are among the laws that clearly show Islam’s concern for these matters, because wine is destructive of all the universal needs, having the potential to destroy life, wealth, intellect, reputation, and religion.

Prescribed Punishments - Hadd

- **6. Apostasy**

Apostasy is defined as a Muslim making a statement or performing an action that takes him out of the fold of Islam. The punishment prescribed for it in the Sunnah is **execution**, and it came as a remedy for a problem that existed at the time of the Prophet, may the mercy and blessings of God be upon him. This problem was that a group of people would publicly enter into Islam together then leave Islam together in order to cause doubt and uncertainty in the hearts of the believers. The Quran relates this event to us:

“A group from the People of the Scripture said: ‘Believe in what is revealed to those who believe, at the beginning of the day, then disbelieve at the end of the day, so perhaps they might return from faith.’ (Quran 3:72)

Thus, the prescribed punishment for apostasy was instituted so that apostasy could not be used as a means of causing doubt in Islam.

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● 2. Retribution - Qisas

- This is the second type of punishment in Islamic Law. This is where the perpetrator of the crime is punished with the same injury that he caused to the victim. If the criminal killed the victim, then he is killed. If he cut off or injured a limb of the victim, then his own limb will be cut off or injured if it is possible without killing the criminal. Specialists are used to make this determination.

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- **The Wisdom behind Retribution:**
 - With regard to Islamic punishments in general, and retribution in specific, we find that they have two complementary characteristics.
 - The first of these is the severity of the punishment. This is in order to discourage the crime and limit its occurrence.
 - The second characteristic is the difficulty of establishing guilt, reducing the opportunities for carrying out the punishment, and protecting the accused.

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- **3. Discretionary Punishments – Ta'zir**
 - These are punishments that are not fixed by Islamic Law, for crimes that either infringe on the rights of God or the rights of an individual, but do not have a fixed punishment or a set expiation.
 - Discretionary punishments are the broadest category of punishments, because the crimes that have fixed punishments are few in number and all other crimes fall under the scope of this last category.
 - They are the most flexible type of punishment, because they take into consideration the needs of society and changing social conditions.

Crime & Punishment in Islam

- **The Objectives of the Islamic Penal System**

- The Islamic penal system has many objectives, the most important of which are as follows:

- **The First Objective:**

- Islam seeks to protect society from the dangers of crime. It is common knowledge that if crimes are not countered with serious punishments, then society will be in grave danger. Islam seeks to make social stability and security widespread, making life in society secure and peaceful.

“There is (preservation of) life for you in retribution, O people of understanding, that you may become pious.” (Quran 2:179)

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- **The Second Objective:**

- Islam seeks to reform the criminal. The Quran often makes mention of repentance in association with the crimes that it deals with, making it clear that the door to repentance is open whenever the criminal abandons his crime and behaves properly.

“...except for those who repent before you take hold of them. Then know that God is the Forgiving, the Merciful.” (Quran 5:34)

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- **The Third Objective:**

- The punishment is a recompense for the crime. It is undesirable to treat a criminal lightly who threatens the security of society with danger. The criminal should receive his just recompense as long as he is pleased with taking the path of evil instead of the path of righteousness. It is the right of society to be secure in its safety and the safety of its individual members. The Quran has asserted this objective when mentioning a number of punishments. God says:
 - “The thieves, male and female, cut off their hands as a recompense for what they have earned...” (Quran 5:38)

Summary

- The Islamic Approach to Combating Crime
- Distinguishing Features of the Islamic Penal System
- Forms of Punishment in Islam
 - 1. Prescribed punishments (Hadd)
 - 2. Retribution (Qisas)
 - 3. Discretionary punishments (Ta'zir)
- The Objectives of the Islamic Penal System

Reference

- Reference book:
 - Al Tantavi, A., n.d. A General Introduction To Islam. Jeddah: Islamic Publication Ltd. pp: 149.
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Exam Preparation Guidelines:

- ✓ “Man is free and has free will to choose”- How to apply the ‘Concept of Reward, Crime & Punishment’ in your life according to Quran and Sunnah.
- ✓ Explain the Principles of the Islamic Penal System with it’s Objectives.